

HOUSE BILL 796

By Vaughan

AN ACT to amend Tennessee Code Annotated, Title 5;
Title 6; Title 7; Title 65; Title 68 and Title 69,
relative to utility infrastructure.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 7, Chapter 51, is amended by adding the following as a new part:

7-51-2601. Part definitions.

As used in this part, "public utility" or "utility" means the water, wastewater, natural gas, or electric system of a county, metropolitan government, or municipality.

7-51-2602. Installation of public utility infrastructure by private contractors.

A public utility in this state shall:

(1) Not require that the utility infrastructure be constructed by the utility;

and

(2) Allow a customer of the utility the option to use a contractor of the customer's choosing for the installation of utility infrastructure.

7-51-2603. Public utility infrastructure specifications.

(a) A public utility may provide reasonable construction and manufacturer's specifications for utility infrastructure to ensure that the infrastructure is constructed properly and with appropriate materials.

(b) Notwithstanding subsection (a), a public utility shall not require that materials or services for the construction of the utility infrastructure be provided by a specific vendor or manufacturer.

7-51-2604. Public utility infrastructure plans and designs.

(a) A public utility may review the plans and designs of the utility infrastructure to be installed for approval. If the utility performs or requires such review, then the utility shall:

(1) Complete the review within thirty (30) days of submission of the plans and designs; and

(2) Not charge a fee of more than one thousand dollars (\$1,000) for review of the plans and designs.

(b) If the public utility does not complete its review of the plans and designs within the thirty-day period, or the utility charges a fee that exceeds one thousand dollars (\$1,000) for review of the plans and designs, then the plans and designs are deemed approved if the utility customer has the plans and designs certified as accepted and in compliance with applicable design standards by an engineer who:

(1) Is licensed in accordance with title 62, chapter 2; and

(2) Has appropriate liability insurance with limits of liability of not less than the utility customer's budgeted cost for the utility infrastructure.

SECTION 2. The headings in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the code commission is requested to include the headings in any compilation or publication containing this act.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.